

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

-----X
GREGORY ASSAN,

SUMMONS

Plaintiff,

Plaintiff designates KINGS
County as the place of trial.

-against-

The basis of venue is:
THE COUNTY WHERE
THE CAUSE OF ACTION
AROSETHE CITY OF NEW YORK, P.O. SADOSLAW R.
TEREPKA (Shield No. 14042) and SGT. ROBERT A.
MARTINEZ (Shield No. 1369),The Cause of Action Arose in
Brooklyn, NY – KINGS
COUNTYDefendants.
-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: JAMAICA, NEW YORK
MAY 2, 2016
Kareem R. Vessup Esq.
THE LAW OFFICE OF KAREEM R. VESSUP ESQ.
Attorneys for Plaintiff
GREGORY ASSAN
89-31 161st Street, Suite 705
Jamaica, NY 11432
(718) 219-8744TO The City of New York
c/o NYC Law Department
100 Church Street
New York, NY 10007P.O. Sadoslaw R. Terepka
One Police Plaza

New York, NY 10007

Sgt. Robert A. Martinez
One Police Plaza
New York, NY 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
GREGORY ASSAN,

Index No.:

Plaintiff,

-against-

VERIFIED
COMPLAINT

THE CITY OF NEW YORK, P.O. SADOSLAW R.
TEREPKA (Shield No. 14042) and SGT. ROBERT A.
MARTINEZ (Shield No. 1369),

Defendants.
-----X

Plaintiff, **GREGORY ASSAN**, by his attorneys, **THE LAW OFFICE OF KAREEM R. VESSUP, ESQ.**, complaining of the Defendants herein respectfully allege as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which the Plaintiff, **GREGORY ASSAN**, seeks relief for the Defendants' violations of his rights secured by 42 U.S.C. §§ 1981, 1983, 1985, 1986, by the United States Constitution, including its First, Fourth and Fourteenth Amendments, and by the laws and Constitution of the State of New York. Plaintiff seeks compensatory and punitive damages, an award of costs, interest and attorney's fees, and such other and further relief as this Court deems just and proper.

PARTIES

2. That at the time of the commencement of this action Plaintiff **GREGORY ASSAN** was a resident of the State of Georgia.

3. Defendant **THE CITY OF NEW YORK** was and is a municipal corporation duly organized and existing under by virtue of the laws of the State of New York.

4. Defendant **THE CITY OF NEW YORK** maintains the New York City Police Department (hereinafter referred to as "NYPD"), a duly authorized police department which acts as its agent for purposes of law enforcement and for which Defendant **THE CITY OF NEW YORK** is ultimately responsible.

5. That at all times hereinafter mentioned, the individually named Defendants, **P.O. SADOSLAW R. TEREPA and SGT. ROBERT A. MARTINEZ**, were duly sworn police officers of the New York City Police Department and were acting under the supervision of said department and according to their official duties.

6. That at all times hereinafter mentioned the Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

7. Each and all of the acts of the defendants alleged herein were done by said Defendants while acting within the scope of their employment by Defendant **THE CITY OF NEW YORK**.

8. On July 2, 2013 a Notice of Claim was served upon Defendant **THE CITY OF NEW YORK** utilizing the NYC Comptroller's Office's e-filing system.

9. On July 2, 2013 **THE CITY OF NEW YORK** acknowledged Plaintiff's claim and assigned claim number 2013PI016955.

10. On October 10, 2013 a Municipal Law 50-h Hearing was held at the law office of Kres and Flores LLP.

11. More than 30 days have passed since presentation of Plaintiff's claim and to date the claim has not been settled.

FACTS

12. On December 4, 2011 Plaintiff was a small business owner of a tattoo parlor located at 2349 Pitkin Ave. in Brooklyn, NY

13. On December 4, 2011 at approximately 11pm Plaintiff was lawfully at his business when at least 5 plainclothes police officers, including the individually named Defendants, entered the business establishment claiming that they were investigating a reported disturbance at the location.

14. Upon information and belief these officers were the infamous 75th Precinct Anti-Crime Squad.

15. The officers handcuffed all the individuals within the establishment, including Plaintiff, and conducted a search. Thereafter the officers questioned the individuals.

16. When the officers began questioning Plaintiff they became very aggressive calling Plaintiff a liar, claiming he had a criminal record and threatening to arrest him.

17. The Defendants never read Plaintiff his Miranda warnings.

18. The officers searched Plaintiff's bag and other belongings without consent. After searching Plaintiff's bag the officers removed the handcuffs from everyone else in the establishment and forced them to leave the property.

19. The officers then continued searching Plaintiff's belongings. After completing the search the officers arrested Plaintiff and transported him to the NYPD 75th Precinct.

20. Plaintiff remained in the 75th Precinct for several hours and was thereafter transported to Central Booking.

21. While in Central Booking Plaintiff was approached by another NYPD detective and after this additional questioning was completed Plaintiff was returned to a cell until his arraignment.

22. Defendants thereafter provided false information to the Kings County District

Attorney's Office to initiate a criminal prosecution against Plaintiff charging him with crimes that Plaintiff was innocent of. The charges included one or more felony charges that exposed Plaintiff to potential years of incarceration.

23. Defendants made the foregoing arrest without probable cause.

24. Defendants initiated the foregoing criminal prosecution for a purpose other than a lawful and proper one.

25. Plaintiff was arraigned and because of the nature of the charges brought against him bail was set requiring Plaintiff to remain in custody until bail was posted.

26. Additionally, Plaintiff was forced to retain the services of a criminal defense attorney for a cost of approximately \$10,000.00.

27. After the initiation of the criminal case against Plaintiff Defendants failed to take any further steps in their investigation to confirm the specific charges brought against Plaintiff.

28. At some point during the criminal litigation the District Attorney's Office dismissed and/or reduced the felony charges because they were improper and unsustainable.

29. The criminal action continued regarding the remaining misdemeanor charges.

30. Despite the fact that Defendant **SGT. ROBERT A. MARTINEZ** provided information to the Criminal Court indicating he specifically observed Plaintiff in possession of a silver .38 caliber semi-automatic pistol, all charges against Plaintiff were dismissed by the District Attorney's Office almost 2 years later in May 2013.

31. As a result of these false and fabricated charges Plaintiff lost employment income.

32. As a result of these false and fabricated charges Plaintiff lost business income and equipment.

33. As a result of these false and fabricated charges Plaintiff was caused to incur the expense of posting bail to be released from custody.

34. As a result of these false and fabricated charges Plaintiff was caused to incur the

expense of hiring a criminal defense attorney.

35. As a result of these false and fabricated charges Plaintiff was caused to suffer psychological and emotional injuries.

AS AND FOR A FIRST CAUSE OF ACTION

36. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs "1" through "35" as if set forth herein at length.

37. Pursuant to 42 U.S.C. § 1981(a), "all persons... shall have the same right... to the full and equal benefit of all laws and proceedings for the security of persons and property as is enjoyed by white citizens."

38. Plaintiff **GREGORY ASSAN** as an African American man, is a member of a racial minority.

39. That upon information and belief on December 4, 2011 and continuing until May 2013 Defendants, jointly and severally subjected Plaintiff to biased and discriminatory treatment consistent with the policy and practices employed by the NYPD in communities of color; said practices include, but are not limited to, warrantless entry into private property, misrepresentations regarding criminal activity to gain entry into private property, utilizing unreasonable force and intimidating tactics to coerce racial minorities to become subservient and fearful of police officers, and providing false information to initiate criminal charges to achieve performance objectives and other illegitimate purposes.

40. The conduct of Defendants evidences that on December 4, 2011 and continuing thereafter until May 2013 Defendants intended to discriminate against Plaintiff **GREGORY ASSAN** with willful and wanton disregard of the rights and privileges guaranteed Plaintiff by the

Constitution of the United States, federal, state and local law.

41. That by engaging in the aforementioned conduct Defendants interfered with Plaintiff's right to equal benefit of all laws and proceedings for the security of persons and property as is enjoyed by white citizens in violation of 42 U.S.C. § 1981.

AS AND FOR A SECOND CAUSE OF ACTION

42. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs "1" through "41" as if set forth herein at length.

43. In relevant part, 42 U.S.C. § 1985(3) provides that, "[i]f two or more persons in any State or Territory conspire... for the purpose of depriving, either directly or indirectly, any person... of the equal protection of the laws, or of equal privileges and immunities under the laws...; in any case of conspiracy set forth in this section, if one or more persons engaged therein do, or cause to be done, any act in furtherance of the object of such conspiracy, whereby another is injured in his person or property, or deprived of having and exercising any right or privilege of a citizen of the United States, the party so injured or deprived may have an action for the recovery of damages occasioned by such injury or deprivation, against any one or more of the conspirators."

44. That Defendants **P.O. SADOSLAW R. TEREPA** and **SGT. ROBERT A. MARTINEZ** in their capacities as NYPD Officers either explicitly or implicitly agreed to enter Plaintiff's place of business under false pretense, handcuff Plaintiff and search his personal belongings without authority or consent and provide false and fabricated information to the District Attorney's Office to cause a criminal prosecution to be initiated against Plaintiff.

45. Defendants acted upon their explicit or implicit agreement by actually entering Plaintiff's place of business under false pretense, handcuffing Plaintiff and searching his personal belongings without authority or consent and providing false and fabricated information to the District Attorney's Office to cause a criminal prosecution to be initiated against Plaintiff.

46. Defendants **P.O. SADOSLAW R. TEREPA** and **SGT. ROBERT A. MARTINEZ** did conspire to violate Plaintiff's federal Constitutional and Statutory rights, as enumerated above, by virtue of their cooperative effort. Said conduct of Defendants was motivated by racial animus.

47. As a result of the Defendants' conduct Plaintiff suffered a deprivation of rights guaranteed him by the United States Constitution, the laws of The United States and the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

48. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs "1" through "47" as if set forth herein at length.

49. In relevant part 42 U.S.C. § 1986 provides that, "[c]very person who, having knowledge that any of the wrongs conspired to be done, and mentioned in section 1985 of this title, are about to be committed, and having power to prevent or aid in preventing the commission of the same, neglects or refuses so to do, if such wrongful act be committed, shall be liable to the party injured, or his legal representatives, for all damages caused by such wrongful act, which such person by reasonable diligence could have prevented; and such damages may be recovered in an action on the case; and any number of persons guilty of such wrongful neglect or

refusal may be joined as defendants in the action.”

50. Defendants **P.O. SADOSLAW R. TEREPA** and **SGT. ROBERT A. MARTINEZ** had knowledge of the conspiracy to discriminate against Plaintiff and deprive him of certain federal constitutional and statutory rights.

51. Upon information and belief, Defendants **P.O. SADOSLAW R. TEREPA** and **SGT. ROBERT A. MARTINEZ** in their capacities as NYPD officers had the power and ability to prevent or aid in the prevention of the acts that infringed upon Plaintiff’s federal Constitutional and Statutory rights.

52. Despite having this power Defendants **P.O. SADOSLAW R. TEREPA** and **SGT. ROBERT A. MARTINEZ** neglected or refused to prevent the acts of discrimination from being perpetrated upon plaintiff.

53. As a result of Defendants **P.O. SADOSLAW R. TEREPA** and **SGT. ROBERT A. MARTINEZ** actions or failures thereof Plaintiff suffered a deprivation of the above enumerated rights guaranteed by the United States Constitution, the laws of The United States and the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

54. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs “1” through “53” as if set forth herein at length.

55. That at all times herein mentioned **P.O. SADOSLAW R. TEREPA** and **SGT. ROBERT A. MARTINEZ** were acting under color of state law.

56. That at all times herein mentioned **P.O. SADOSLAW R. TEREPA** and **SGT.**

ROBERT A. MARTINEZ were acting as officers, sergeants and/or detectives of the New York City Police Department in furtherance of their law enforcement function.

57. That at all times herein mentioned Plaintiff **GREGORY ASSAN** was and remains a citizen of the United States and thereby entitled to all of the rights and privileges guaranteed by the United States Constitution including those rights enumerated by the fourth and fourteenth amendments.

58. That as a result of the aforementioned conduct of Defendants **P.O. SADOSLAW R. TEREPA** and **SGT. ROBERT A. MARTINEZ** Plaintiff was deprived of his fourth amendment right to be free from malicious criminal prosecution.

59. That as a result of the conduct of these Defendants Plaintiff was damaged.

AS AND FOR A FIFTH CAUSE OF ACTION SEEKING PUNITIVE DAMAGES

60. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs "1" through "59" as if set forth herein at length.

61. That Defendants **P.O. SADOSLAW R. TEREPA** and **SGT. ROBERT A. MARTINEZ** have a well documents history of violating the rights of individuals within the NYPD 75th Pct.

62. The aforementioned conduct of Defendants **P.O. SADOSLAW R. TEREPA** and **SGT. ROBERT A. MARTINEZ** is another example of this well documented behavior by these Defendants that resulted in false, incomplete and/or misleading information being provided to the Kings County District Attorney's Office to initiate a criminal prosecution against Plaintiff for illegitimate purpose.

63. The aforementioned conduct by Defendants **P.O. SADOSLAW R. TEREPKA** and **SGT. ROBERT A. MARTINEZ** was willful, wanton and deliberately indifferent to Plaintiff's Constitutional and statutory rights.

64. As a result of the aforementioned conduct of these Defendants, Plaintiff is entitled to a punitive damage award.

WHEREFORE, the Plaintiff, **GREGORY ASSAN**, demands judgment against the Defendants, together with the costs and disbursements of this action in an amount of damages greater than the jurisdictional limit of any lower court which would otherwise have jurisdiction. Additionally, Plaintiff demands in respect of all causes of action, punitive damages and attorney fees pursuant to 42 USC Section 1988.

Dated: JAMAICA, NEW YORK
MAY 2, 2016


Kareem R. Vessup

ATTORNEY'S VERIFICATION

Kareem R. Vessup Esq., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury.

I am a member of the LAW OFFICE OF KAREEM R. VESSUP, attorney-of-record for Plaintiff **GREGORY ASSAN** in the action within. I have read the annexed:

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein, which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff is because the Plaintiff is not presently in the county wherein I maintain my Law Office.

DATED: JAMAICA, NEW YORK
MAY 2, 2016


Kareem R. Vessup